

5.

CASE #	CASE NAME	HEARING NAME
CVRI2503747	TONG vs CITY OF RIVERSIDE, A CALIFORNIA CHARTER CITY AND MUNICIPAL CORPORATION	DEMURRER ON 3RD AMENDED PETITION

Tentative Ruling:

GRANT the Defendants' Request for Judicial Notice.

OVERRULE the demurrer to the writ of mandate. The allegations in the TAC give the City fair notice of Petitioner's theory. Petitioner alleges that the hearing officer failed to consider specified mitigation factors despite Petitioner's presentation of that evidence. The City should be able to determine how to respond to such an allegation. At this stage, accepting as true Petitioner's allegations that applicable procedures required the consideration of mitigation, and that the decision-maker did not consider it, are sufficient to survive demurrer.

First Cause of Action: Procedural Due Process (42 U.S.C. § 1983)

As to Defendant Davila

CCP § 1094.6(c) requires the local agency to prepare and deliver the complete record within 190 days after the petitioner files a written request. On the facts alleged in the TAC, the City delivered the recording within the statutory period. The TAC does not allege facts showing that the delay prevented Petitioner from receiving notice, participating in the hearing, filing this action, or obtaining judicial review. Indeed, Petitioner filed this action before the City produced the recording. Petitioner's assertion that the litigation prompted production does not itself show a deprivation of a federal procedural right.

SUSTAIN the demurrer with 30 days leave to amend.

As to Defendant Sunga

The TAC alleges that code enforcement employee Sunga materially participated in creating the hearing Order, "fabricated" an electronic image of Hearing Officer Palacio's signature on the Order, and caused the Order to issue as the hearing officer's decision. Accepting the allegations as true, the TAC sufficiently alleges that Sunga acted without Palacio's authorization and that the Order did not reflect the neutral hearing officer's decision. While it is true that Sunga's name does not appear anywhere on the Order, the court cannot resolve factual issues on demurrer.

OVERRULE.

Second Cause of Action: Equal Protection (42 U.S.C. § 1983)

The TAC, when read as a whole, alleges that similarly situated property owners of other races ordinarily received notice and an opportunity to correct the newly identified offending condition, but that employee Davila denied Petitioner that opportunity because of his race. Whether Petitioner can identify similarly situated comparators and prove intent cannot be resolved on demurrer.

OVERRULE

Third Cause of Action: Municipal Failure to Train (42 U.S.C. § 1983)

The TAC alleges that the City failed to train Palacios to consider mitigation or failed to provide an appropriate order form. (TAC, Para.26.) The TAC does not, however, identify the City's training practices, facts showing that final policymakers knew of and disregarded a pattern of similar violations, or circumstances making the asserted constitutional consequence patently obvious. The TAC's language that inadequate training "should have been obvious (TAC, Para. 26) does not supply the missing facts. The allegations are insufficient to allege the required *deliberate indifference* and *causation*.

SUSTAIN with 30 days leave to amend.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2503747	TONG vs CITY OF RIVERSIDE, A CALIFORNIA CHARTER CITY AND MUNICIPAL CORPORATION	MOTION TO STRIKE 3RD AMENDED PETITION

Tentative Ruling:

DENY

While it is true that the audio recording delay occurred *after* the hearing, Paragraph 15 supplies the factual basis for the First Cause of Action and also provides procedural context for the writ. For Paragraph 17, the tenant's obstruction and Petitioner's offer of replacement housing to the tenant may be relevant to Petitioner's argument that the hearing officer failed to consider Petitioner's good-faith compliance efforts and other mitigation in assessing the penalty.